

(48)

Tentative Ruling

Re: **Pickens v. Macias**
Superior Court Case No. 25CECG03419

Hearing Date: June 25, 2026 (Dept. 502)

Motion: By Defendant Dr. Edgar S. Macias, M.D. for an Order Compelling Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages; and Request for Sanctions

**If oral argument is timely requested, it will be entertained on
Wednesday, July 8, 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To grant defendant Dr. Edgar S. Macias's motion to compel plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens to provide verified responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens are ordered to serve complete verified responses to the discovery set forth above, without objections, within 15 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of defendant Dr. Edgar S. Macias and against plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens are ordered to pay \$900.00 in total sanctions to Salinas Law Group within 30 days of the clerk's service of the minute order.

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives any objection to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

In the case at bench, on November 19, 2025, defendant Dr. Edgar S. Macias, M.D. ("Defendant") served Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages on plaintiffs Lawrence Leroy Pickens and Mary Annette Pickens ("Plaintiffs") by electronic service. Plaintiffs were required to respond by December 22, 2025. Plaintiffs failed to timely serve verified responses. Therefore, Defendant is entitled to an order

compelling Plaintiffs to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Sanctions

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Counsel for Defendant submits that their hourly rate is \$220 per hour. The court approves the hourly rates as reasonable. Plaintiff seeks imposition of 3 hours for legal research and preparation of the motions considered, and an additional fee for an appearance at a possible hearing. The court imposes sanctions in the reduced amount of \$900, inclusive of the \$240 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 6-24-26 .

(Judge's initials) (Date)